Prabhunath Yadav And 10 Others vs State Of U.P.4 Others on 5 March, 2020

Bench: Sudhir Agarwal, Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

Court No. - 34

Case :- WRIT - C No. - 8071 of 2020

Petitioner :- Prabhunath Yadav And 10 Others

Respondent :- State Of U.P. and Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Kaushalendra Nath Singh

Hon'ble Sudhir Agarwal,J.
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Hon'ble Rajeev Misra,J.

1. Heard Sri Neeraj Srivastava, learned counsel for petitioners, Sri Kaushalendra Nath Singh, learned counsel for respondent-2 and learned Standing Counsel for respondents- 1, 3, 4 and 5.

2. In this writ petition, petitioners are Street Vendors and their grievance is that they are being removed from the site where they are carrying on their street vending business without providing any alternative accommodation in view of provisions contained in "The Street Vendors (Protection of Livelihood and Regulations of Street Vending) Act, 2014 (hereinafter referred to as 'Act, 2014") and "The Street Vendors (Protection of Livelihood and Regulation of Street Vending) Rules, 2017 (hereinafter referred to as "Rules, 2017").

3. We find that in the matter involving similar issue, this Court has passed a judgement in Writ Petition No. 28417 of 2019 (Saroj Gupta and 11 Others Vs. State of U.P. and 3 Others) decided on

17.09.2019 and operative part of judgement contained in para-16 reads as under:-

> "In view thereof, without expressing any opinion on the merits of the matter, we dispose of this writ petition permitting petitioners to approach concerned authority by moving appropriate representation, and in case, such a representation is made, Respondent-Authority shall investigate into the fact whether petitioners are doing their business of Street Vendors without encroachment on public land and without obstructing free flow of traffic etc. and if these facts are found correct, only then the competent authority of respondents shall consider their cases in the light of provisions of Act, 2014 and Rules framed thereunder and pass an appropriate order in accordance with law within two months from the date of receipt of representation along with a certified copy of this order."

4. Similar issue has been considered in another Writ Petition No. 28304 of 2019 (Suraj Kumar and 3 Others Vs. State of U.P. and 4 Others) decided on same day i.e. 17.09.2019 and operative part of aforesaid judgement contained in paras- 8 and 9 is reproduced as under:-

> "8. In view thereof, without expressing any opinion on the merits of the case, we dispose of this writ petition permitting petitioners to approach Authorities concerned by moving appropriate representation and in case such a representation is made, Respondents-Competent Authority shall verify the facts whether petitioners are doing their business of Street Vendors without encroachment on public land and without obstructing free flow of traffic etc. and if these facts are found correct, only then their case may be considered in the light of provisions of Act, 2014 and Rules framed thereunder and Competent Authority shall pass appropriate order in accordance with law within two months from the date of receipt of representation filed along with a certified copy of this order.
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> 9. In the meantime, if any advertisement has been made by Respondent-Competent Authority inviting applications for allotment of shops in vending zone, it will also be open to petitioners to make such application."

5. Counsel for parties could not dispute that controversy raised in the present writ petition is squarely covered by the aforesaid two judgements.

6. For the reasons stated in above judgements i.e. in Saroj Gupta (supra) and Suraj Kumar (supra), this writ petition is disposed of in terms of directions contained in the aforesaid two judgements.

Order Date :- 5.3.2020 Siddhant Sahu